

if the subject of the trust be articles which pass by delivery, as plate, they should be deposited with the bankers of the trustees (*b*). As to stocks transferred by delivery and payable to bearer, as Spanish bonds, Vice-Chancellor Wood observed, that “no doubt the bonds might be kept at the bankers’ in a box with *three locks*, opened by *three different keys*, one to be kept by each of the three trustees; but as the interest was payable upon *coupons* twice a year, so that the box must be opened as often for that purpose, he thought that ordinary prudence did not require such a course to be adopted, more particularly as it would be the bankers’ duty to see that the *coupons* only were taken out of the box, and that neither the box nor the securities were removed”; and so it was decided (*c*).

[Where Russian Railway bonds which passed by delivery were purchased by two trustees, and each of the trustees took possession of a moiety of the bonds, but one of the trustees disposed of the moiety held by him and applied the proceeds for his own purposes, it was held that the other trustee was liable for the misapplication, as it was the duty of the trustees where the bonds were transferable by delivery to take care that no improper disposition could be made of them (*d*).]

4. **Insurance.**—An executor has been held *not* to be answerable for having omitted to secure the safety of *leasehold* premises by *insuring* them against fire (*e*).

5. **Trustee should place trust money in a responsible bank, but not to his own credit.**—If the subject of the trust be *money*, it may be deposited for *temporary* purposes in some responsible banking-house (*f*), but in such a manner that

(*b*) *Mendes v. Guedalla*, 2 J. & H. 259.

(*c*) *Mendes v. Guedalla*, 2 J. & H. 259; *Consterdine v. Consterdine*, 31 Beav. 331; and see *Matthews v. Brise*, 6 Beav. 239.

[(*d*) *Lewis v. Nobbs*, 8 Ch. D. 591.]

(*e*) *Bailey v. Gould*, 4 Y. & C. 221; and see *Ex parte Andrews*, 2 Rose, 410; *Dobson v. Land*, 8 Hare, 216; *Fry v. Fry*, 27 Beav. 146.

(*f*) *Routh v. Howell*, 3 Ves. 565; *Jones v. Lewis*, 2 Ves. 241, per Lord Hardwicke; *Adams v. Claxton*, 6 Ves. 226; *Ex parte Belchier*, Amb. 219, per Lord Hardwicke; *Attorney-General v. Randall*, 21 Vin. Ab. 534, per Lord Talbot; *Massey v. Banner*, 1 Jac. & W. 248, per Lord Eldon; *Horsley v. Chaloner*, 2 Ves. 85, per Sir J. Strange; *France v. Woods*, Taml. 172; *Lord Dorchester v. Earl of*